

KAVANAUGH, J., concurring in part

ment does not suffice to overrule. In the view of the Court that is considering whether to overrule, the precedent must be egregiously wrong as a matter of law in order for the Court to overrule it. In conducting that inquiry, the Court may examine the quality of the precedent's reasoning, consistency and coherence with other decisions, changed law, changed facts, and workability, among other factors. A case may be egregiously wrong when decided, see, *e. g.*, *Korematsu v. United States*, 323 U. S. 214 (1944); *Plessy v. Ferguson*, 163 U. S. 537 (1896), or may be unmasked as egregiously wrong based on later legal or factual understandings or developments, see, *e. g.*, *Nevada v. Hall*, 440 U. S. 410 (1979), or both, *ibid.*

*Second*, has the prior decision caused significant negative jurisprudential or real-world consequences? In conducting that inquiry, the Court may consider jurisprudential consequences (some of which are also relevant to the first inquiry), such as workability, as well as consistency and coherence with other decisions, among other factors. Importantly, the Court may also scrutinize the precedent's real-world effects on the citizenry, not just its effects on the law and the legal system. See, *e. g.*, *Brown v. Board of Education*, 347 U. S., at 494–495; *Barnette*, 319 U. S., at 630–642; see also *Payne*, 501 U. S., at 825–827.

*Third*, would overruling the prior decision unduly upset reliance interests? This consideration focuses on the legitimate expectations of those who have reasonably relied on the precedent. In conducting that inquiry, the Court may examine a variety of reliance interests and the age of the precedent, among other factors.

In short, the first consideration requires inquiry into how wrong the precedent is as a matter of law. The second and third considerations together demand, in Justice Jackson's words, a "sober appraisal of the disadvantages of the innovation as well as those of the questioned case, a weighing of